

Court No. - 2

Case :- WRIT - C No. - 525 of 2025

Petitioner :- Mohd. Nooruz Zaman

Respondent :- Madhyanchal Vidyut Vitaran Nigam Ltd. Thru. Its Managing Director And 6 Others

Counsel for Petitioner :- Tushar Hirwani, Shreya Prakash

Counsel for Respondent :- Aprajita Bansal

Hon'ble Rajan Roy, J.

Hon'ble Manish Kumar, J.

1. Heard Ms. Shreya Prakash, learned counsel for the petitioner and Ms. Aprajita Bansal, learned counsel for the opposite parties- Electricity Corporation.

2. Considering the law on the subject and the order proposed to be passed issuance of notice to the opposite party no. 5 is dispensed with.

3. The petitioner claims to be a tenant of the opposite party no. 5 and in possession of a flat bearing Flat No. 9, Victoria Street, Hasnanin Market, Lucknow. He wants an independent electricity connection in his name.

4. Ms. Aprajita Bansal, learned counsel for the opposite parties- Electricity Corporation says that if the consent of the landlord is not being made available, then, indemnity bond can be submitted by the petitioner whereupon the application can be processed and a decision be taken as per Para 4.4 read with Annexure No. 4.2 of the U.P. Electricity Supply Code, 2005.

5. Learned counsel for the petitioner says that though there is a dispute with the landlord and a suit for permanent injunction has been filed by the petitioner without there being any suit for eviction by the landlord/ owner the petitioner wants a separate connection. She relies upon judgment reported in **(2015) 1 All LJ 44; Seema Manoor Vs. U.P. Power Corporation Ltd. and Ors.**

6. Subject to an inquiry as to tenancy and possession of the petitioner of the premises in question, if an indemnity bond is submitted by the petitioner, then, the concerned opposite party shall process the same for grant of separate electricity connection as per rules. This exercise shall be completed at the earliest, say, within a period of

four weeks.

7. It is however made clear that our order shall not confer any right of possession or title in respect of the premises in question in favour of the petitioner nor will it prejudice the opposite party no. 5 in any proceedings which may be pending in respect of the premises in question or may be initiated hereinafter.

8. With the aforesaid observations/directions, the writ petition is **disposed of.**

(Manish Kumar,J.) (Rajan Roy,J.)

Order Date :- 21.1.2025
R.K.P.